

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Murgio	Team: Squad #02	CCRB Case #: 202004746	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/19/2020 4:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 122		
Date/Time CV Reported Fri, 06/19/2020 4:18 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/01/2020 12:22 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Louis Calcaterra	25047	957411	122 PCT
2. POM Robert Bono	12342	943012	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Salvatore Fraccavento	30812	965106	122 PCT
2. POM Matthew Russo	03660	949592	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Louis Calcaterra	Abuse: Police Officer Louis Calcaterra threatened to arrest § 87(2)(b)	§ 87(2)(b)
B . POM Robert Bono	Abuse: Police Officer Robert Bono threatened to arrest § 87(2)(b)	§ 87(2)(b)

Case Summary

On June 19, 2020, § 87(2)(b) filed this complaint with IAB, generating Original Log #20-15474. The complaint was forwarded to the CCRB, where it was received on July 1, 2020.

On June 19, 2020, at approximately 4:00 a.m., § 87(2)(b) was at her home at § 87(2)(b) in Staten Island, smoking marijuana with some friends. Also present were § 87(2)(b) (a friend of § 87(2)(b) s) § 87(2)(b) (the owner of the house) and § 87(2)(b) whom § 87(2)(b) met that night when he brought unidentified mutual friends to her house. § 87(2)(b) and § 87(2)(b) had a verbal altercation after § 87(2)(b) allegedly took \$50 of § 87(2)(b) money from his wallet. § 87(2)(b) or a friend prevented § 87(2)(b) from leaving, and she called the police.

After § 87(2)(b) called 911, Police Officer Louis Calcaterra, Police Officer Robert Bono, Police Officer Salvatore Fraccavento, and Police Officer Matthew Russo, all of the 122nd Precinct, arrived. § 87(2)(b) told the officers that § 87(2)(b) had stolen from him, and § 87(2)(b) told the officers that § 87(2)(b) had given her the money, then tried to take it back. Police Officer Calcaterra and Police Officer Bono told § 87(2)(b) that they would arrest her if she did not return § 87(2)(b) money (**Allegation A: Abuse of Authority – Threat of Arrest – § 87(2)(g)** and **Allegation B: Abuse of Authority – Threat of Arrest – § 87(2)(g)**). § 87(2)(b) returned § 87(2)(b) money. § 87(2)(b) left, followed by the officers.

Body-worn camera (BWC) footage was obtained for this case and is linked to IAs #51-54 (Board Review 01-04). It has been summarized in IA #61 (Board Review 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Louis Calcaterra threatened to arrest

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Robert Bono threatened to arrest § 87(2)(b)

§ 87(2)(b) was interviewed by telephone on September 2, 2020 (Board Review 06). § 87(2)(b) provided a telephone statement on November 6, 2020 and a follow-up telephone statement on November 13, 2020 (Board Review 07, 08). § 87(2)(b) provided a phone statement on December 8, 2020 (Board Review 09). § 87(2)(b) provided a phone statement on December 8, 2020 (Board Review 10).

It is undisputed that at some point prior to the arrival of officers, § 87(2)(b) came into possession of § 87(2)(b) money. At some point later, but still prior to the arrival of officers, § 87(2)(b) returned some of § 87(2)(b) money to him but was still in possession of \$35 of § 87(2)(b) money. 911 was called and officers responded. When officers responded, § 87(2)(b) accused § 87(2)(b) of having stolen the money from his wallet. § 87(2)(b) acknowledged to the officers that she had the money but stated that § 87(2)(b) had given it to her. At least one officer informed her that she could be arrested if she did not return § 87(2)(b) money to him.

Beginning at timestamp 0:30 in the footage from Police Officer Calcaterra's BWC (Board Review 03), § 87(2)(b) is seen telling Police Officer Calcaterra that § 87(2)(b) took money from his wallet and gave him back some of it when he asked for it back. When Police Officer Calcaterra asks § 87(2)(b) if she has § 87(2)(b) money, she says that he gave it to her. She says that when

he asked for his money back, she gave him some of it. § 87(2)(b) denies having given anything to § 87(2)(b). Police Officer Calcaterra asks § 87(2)(b) to return § 87(2)(b) money, and she says she will not. She says she sold him something (she does not say what). Police Officer Calcaterra and Police Officer Bono have a brief conversation with each other, during which Police Officer Calcaterra says that § 87(2)(b) will be arrested if she does not return § 87(2)(b) money. Police Officer Calcaterra then tells § 87(2)(b) “If you’re not going to give him his [money] back, we’re going to have to arrest you.” When § 87(2)(b) asks whether he is serious, both Police Officer Calcaterra and Police Officer Bono say yes. § 87(2)(b) says that she did not steal anything but does not deny that she has § 87(2)(b) money. § 87(2)(b) ultimately returns § 87(2)(b) money. § 87(2)(b) says that § 87(2)(b) has to return her “stuff,” and § 87(2)(b) denies having anything of § 87(2)(b)s.

New York State Penal Law Article 165 §40 prohibits a person from knowingly possessing stolen property with the intent to benefit themselves or a person other than the owner of the property. Criminal possession of stolen property in the fifth degree is a class A misdemeanor.

§ 87(2)(g)
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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 11).
- Police Officer Calcaterra has been a member-of-service for 5 years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Bono has been a member-of-service for 13 years and has been a subject in 6 CCRB complaints and 13 allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On December 17, 2020, a FOIL request for any Notices of Claim was submitted to the New York City Office of the Comptroller. Any response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad No.: 2

Investigator: Rachel Murgo Inv. Rachel Murgo 12/24/2020
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Alexander Opoku-Agyemang 12/24/2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date